Equal Opportunities Policy

What is its purpose?

This policy is intended to help the Squaricle Group to achieve its diversity and antidiscrimination aims by clarifying the responsibilities and duties of all staff in respect of equal opportunities and discrimination.

This policy should be read alongside the Squaricle Group Harassment and Bullying Policy, which sets out how concerns about harassment, bullying and victimisation may be raised and managed, and the Squaricle Group Sexual Harassment Prevention Policy, which sets out the proactive steps Squaricle Group takes to prevent sexual harassment in the course of work.

Why is it important to us?

Squaricle Group is committed to equal opportunities for all staff and applicants. The principles of non-discrimination and equal opportunities also apply to the way in which staff treat visitors, clients, customers, suppliers and former staff members.

Why is it important to our clients and learners?

Our clients and learners can be assured that in working and interacting with us, all communication and treatment will be fair, non-discriminatory and free from bias.

Who within the Organisation does it apply to?

This policy applies to all Squaricle Group employees, workers, contracted workers and Associates when working on any Squaricle Group project. It also applies to job applicants where relevant to recruitment or selection.

For the purposes of this policy, references to employees include employed staff, workers, contracted workers and freelance Associate staff where applicable.

Clients, learners, suppliers, contractors, visitors, venue staff and other third parties are not Squaricle Group employees or workers. However, Squaricle Group expects them to behave respectfully and professionally when interacting with Squaricle Group workers or participating in Squaricle Group work, training or events.

When will it be effective from?

Jan 2020

What are our responsibilities and accountabilities?

It is our policy that all employment decisions are based on merit and the legitimate business needs of the Company. The Company does not discriminate on the basis of race, colour or nationality, ethnic or national origins, sex, gender reassignment, sexual orientation, marital or civil partner status, pregnancy or maternity, disability, religion or belief, age or any other ground on which it is or becomes unlawful to discriminate under the laws of Great Britain (referred to as Protected Characteristics).

Our intention is to enable all our staff to work in an environment which allows them to fulfil their potential without fear of discrimination, harassment or victimisation. The Company's

commitment to equal opportunities extends to all aspects of the working relationship including:

• recruitment and selection procedures

• terms of employment, including pay, conditions and benefits

• training, appraisals, career development and promotion

• work practices, conduct issues, allocation of tasks, discipline and grievances

• work-related social events

• termination of employment and matters after termination, including references.

Squaricle Group will take all reasonable steps to prevent sexual harassment of workers in the course of their work. This includes risks arising from colleagues and third parties such as clients, learners, suppliers, contractors, visitors, venue staff or others with whom employees interact during their work. The proactive steps Squaricle Group takes to prevent sexual harassment, including risk assessment, training, third-party controls, monitoring and review, are set out in the Squaricle Group Sexual Harassment Prevention Policy.

What is discrimination?

Discrimination occurs in different ways, some more obvious than others. Discrimination on the grounds of any of the Protected Characteristics is prohibited by law, even if unintentional, unless a particular exception applies.

Direct discrimination

Direct Discrimination is less favourable treatment because of one of the Protected Characteristics. Examples would include refusing a woman a job as a chauffeur because you believe that women are not good drivers or restricting recruitment to persons under 40 because you want to have a young and dynamic workforce.

Direct discrimination can arise in some cases even though the person complaining does not actually possess the Protected Characteristic but is perceived to have it or associates with other people who do. For example, when a person is less favourably treated because they are (wrongly) believed to be homosexual or because they have a spouse who is Muslim.

Indirect discrimination

Indirect discrimination arises when an employer applies an apparently neutral provision, criterion or practice which in fact puts individuals with a particular Protected Characteristic at a disadvantage, statistically and this is unjustified. To show discrimination the individual complaining also has to be personally disadvantaged. An example would be a requirement for job candidates to have ten years' experience in a particular role, since this will be harder for young people to satisfy. This kind of discrimination is unlawful unless it is a proportionate means of achieving a legitimate aim.

Victimisation

Victimisation occurs where a person is subjected to a detriment because they have done, are believed to have done, or may do a protected act. Protected acts include making an allegation of discrimination, bringing proceedings under the Equality Act 2010, giving evidence or information in connection with such proceedings, or doing anything else for the purposes of or in connection with the Equality Act 2010.

Harassment

Harassment is unwanted conduct related to age, disability, gender reassignment, race, religion or belief, sex, or sexual orientation, which has the purpose or effect of violating a person's dignity or creating an intimidating, hostile, degrading, humiliating or offensive environment.

Harassment also includes unwanted conduct of a sexual nature which has that purpose or effect, and less favourable treatment because a person has rejected or submitted to sexual harassment, or harassment related to sex or gender reassignment.

Conduct connected to pregnancy, maternity, marriage or civil partnership may still be unlawful discrimination, victimisation or misconduct and will be treated seriously under this policy.

Harassment may include:

• use of insults or slurs based on the above Protected Characteristics or of a sexual nature or other verbal abuse or derogatory, offensive or stereotyping jokes or remarks

• physical or verbal abuse, threatening or intimidating behaviour because of the above Protected Characteristics or behaviour of a sexual nature

• unwelcome physical contact including touching, hugging, kissing, pinching or patting, brushing past, invading personal space, pushing grabbing or other assaults

• mocking, mimicking or belittling a person's disability, appearance, accent or other personal characteristics

• unwelcome requests for sexual acts or favours; verbal sexual advances, vulgar, sexual, suggestive or explicit comments or behaviour

• repeated requests, either explicitly or implicitly, for dates

• repeated requests for social contact or after it has been made clear that requests are unwelcome;

• comments about body parts or sexual preference

• displaying or distributing offensive or explicit pictures, items or materials relating to the above Protected Characteristics or of a sexual nature

• shunning or ostracising someone, for example, by deliberately excluding them from conversations or activities

• 'outing' or threatening to 'out' someone's sexual orientation (i.e. to make it known);

• explicit or implicit suggestions that employment status or progression is related to toleration of, or acquiescence to sexual advances, or other behaviour amounting to harassment.

Other important points to note about harassment:

• a single incident can amount to harassment

• behaviour that has continued for a long period without complaint can amount to harassment

• it is not necessary for an individual to intend to harass someone for their behaviour to amount to harassment

• it is not necessary for the behaviour to be directed towards the individual claiming harassment: it may be about / directed towards another individual, but the claimant finds it offensive / hostile / intimidating etc.

• it is not necessarily for an individual to communicate that behaviour is unwelcome before it amounts to harassment; and

• the onus is on each individual to be certain that their behaviour and conduct is appropriate and is not unwanted and in the case of doubt, you must refrain from such conduct.

Disability discrimination

Disability discrimination may include direct discrimination, indirect discrimination, discrimination arising from disability, harassment, victimisation, and failure to comply with the duty to make reasonable adjustments.

Discrimination arising from disability occurs where a person is treated unfavourably because of something arising in consequence of their disability, unless the treatment can be objectively justified.

Squaricle Group will make reasonable adjustments where a disabled employee, worker, applicant or other covered individual is placed at a substantial disadvantage compared with people who are not disabled.

Disabled persons

Any employee who considers that they may have a disability is strongly encouraged to speak with the Director of Operations, particularly if they experience difficulties at work because of their disability so that any reasonable adjustments to help overcome or minimise difficulties can be discussed. For these purposes, disability includes any physical or mental impairment which substantially affects the ability to perform day to day activities and has lasted (or is likely to last) more than 12 months. Disclosure of this information will be treated in confidence, if you wish it to be, so far as is reasonably practicable and we will do our best to handle matters sensitively and to ensure that you are treated with dignity and with respect for your privacy.

We will consult with you about whether adjustments are needed to avoid you being disadvantaged and may ask you to see a doctor appointed by us, to advise on this. We will seek to accommodate your needs within reason. If we consider a particular adjustment unreasonable, we will explain why and try to find an alternative solution.

Managers with responsibility for managing an employee with a disability should speak to the Director of Operations to ensure that all relevant duties are complied with.

Making employment decisions fairly

As noted above, the Company will recruit employees and make other employment decisions concerning promotion, training, dismissal and related issues. on the basis of objective criteria.

Squaricle Group may take lawful positive action where people sharing a protected characteristic are disadvantaged, have particular needs, or are under-represented in particular roles or activities. Any positive action must be proportionate, evidence-based and compliant with the Equality Act 2010. Squaricle Group will not use unlawful positive discrimination or automatic selection based on a protected characteristic.

Managers should only stipulate criteria or conditions for employment decisions (including job selection, promotion and redundancy) which are based on a legitimate business need and which do not go further than is needed to satisfy that need. If you are in any doubt about whether particular criteria or conditions are indirectly discriminatory or justifiable, then please speak to the Director of Operations.

Managers involved in recruitment must:

• specify only recruitment criteria that are relevant to the job, reflect genuine business needs and are proportionate. More than one person should be involved in shortlisting of applicants wherever practicable

• ensure that vacancies are advertised to a diverse audience and follow all procedures outlines in the Squaricle Group Recruitment Policy.

• review job advertisements carefully to ensure that stereotyping is avoided, language is gender-neutral and that particular groups are not unjustifiably discouraged from applying

• not ask applicants about health or disability before making a job offer, except where permitted by law, including where necessary to identify reasonable adjustments for the recruitment process, establish whether the applicant can carry out a function intrinsic to the role, monitor diversity, support lawful positive action, or assess an occupational requirement. Any such questions must be approved by the Director of Operations and must not be used unlawfully in selection decisions.

• not ask candidates about any Protected Characteristic if the question may demonstrate an intention to discriminate. For example, candidates should not be asked about current or future pregnancy, childcare or related matters.

• not make assumptions about immigration status based on appearance, accent or apparent nationality

• so far as reasonably practicable, keep a written record of their reasons for relevant decisions.

The Company is legally required to verify that all employees have the right to work in the UK before employment starts. Checks will be completed in accordance with current Home Office requirements, which may include a manual document check, an online right to work check using a share code, or another permitted checking route. Checks will be applied consistently and must not be based on assumptions about nationality, ethnicity, accent or appearance. The Company monitors applicants'

- Gender
- Marital Status
- Age
- Ethnicity
- Disability
- Sexual Orientation
- Religion & belief

as part of our recruitment process. We do this to assess the effectiveness of our measures to promote equal opportunities and to help us identify and take appropriate steps to avoid discrimination, under-representation and potential disadvantage and improve diversity.

Provision of this information is voluntary and the information is kept in an anonymised format solely for the purposes stated here. Equality monitoring information will be collected separately from recruitment decision-making information and will not be used to make decisions about an individual's recruitment or employment.

Where this information includes special category data, Squaricle Group will process it only where it has a lawful basis under UK GDPR Article 6 and a special category condition under UK GDPR Article 9 and the Data Protection Act 2018. Access will be restricted to those who need it for equality monitoring purposes, the data will be anonymised or aggregated wherever practicable, and it will be retained only for as long as necessary in accordance with Squaricle Group's data retention arrangements and privacy notices.

Progression and Development

Training needs may be identified during our standard performance management processes. Appropriate training to facilitate progression will be accessible to all staff.

All promotion decisions will be made on the basis of merit and according to proportionate criteria determined by legitimate business need.

Employee diversity at different levels of the Company will be kept under review to ensure equality of opportunity. Where unjustified barriers to progression are identified, these will be removed.

Conditions of service

Access to benefits and facilities and terms of employment will be kept under review to ensure that they are appropriately structured and that no unlawful barriers to qualification or access exist.

Discipline and termination of employment

Any redundancy selection criteria and procedures that are used, or other decisions taken to terminate employment, will be fair and not directly or indirectly discriminatory.

Disciplinary procedures and penalties will be applied without discrimination, whether they result in disciplinary warnings, dismissal or other disciplinary action.

Part-time and fixed-term staff will be treated the same as full-time or permanent staff of the same position and enjoy no less favourable terms and conditions (pro-rata, where appropriate), unless different treatment is justified.

What to do if you encounter discrimination

If you believe that you have been the victim of discrimination, you should follow the Company's Grievance Procedure.

If your concern relates to harassment, bullying or victimisation, you should refer to the Squaricle Group Harassment and Bullying Policy.

If your concern relates to sexual harassment, you may raise it using the reporting routes in the Squaricle Group Harassment and Bullying Policy or the Squaricle Group Sexual Harassment Prevention Policy. Sexual harassment concerns will normally be managed under the Harassment and Bullying Policy and, where appropriate, the Disciplinary Procedure.

Every employee has a responsibility to combat discrimination if they encounter it. Employees who observe or are aware of acts that they believe amount to discrimination directed at others are encouraged to report these to their line manager, the Director of Operations, or another appropriate senior manager where the concern involves the usual reporting line. Complaints will be handled promptly, sensitively and impartially, with appropriate steps taken to manage confidentiality, conflicts of interest and protection from victimisation.

Any grievance or report raised about discrimination will be kept confidential so far as this is practicable. We may ask you if you wish your complaint(s) to be put to the alleged discriminator if disciplinary action appears to be appropriate. It sometimes may be necessary to disclose the complaint or take action even if this is not in line with your wishes, but we will seek to protect you from victimisation and, if you wish, we will seek to protect your identity. You should be aware that disciplinary action may be impossible without your co-operation or if you refuse to allow relevant information to be disclosed.

Employees who raise a complaint about or report discrimination in good faith will be protected from retaliation or victimisation. As long as you act in good faith, the fact that you have raised a complaint or report will not affect your position within the Company, even if the complaint is not upheld. Making a false allegation deliberately and in bad faith is a

misconduct offence and will be dealt with in accordance with our Disciplinary procedure. Any employee who attempts acts of retaliation or victimisation may be subject to disciplinary action up to and including summary dismissal for gross misconduct.

Where a complaint is raised, Squaricle Group may consider appropriate interim measures while the matter is being investigated. These may include temporary working arrangements, changes to reporting lines, steps to limit contact between individuals, welfare support or, where necessary, paid suspension of the alleged perpetrator. Interim measures will be considered carefully and should not disadvantage the person who has raised the concern unless this is unavoidable and discussed with them.

Non-compliance with equal opportunities rules

Any breach of equal opportunities rules or failure to comply with this policy will be taken very seriously and is likely to result in disciplinary action against the offender, up to and including immediate dismissal.

Employees should also note that:

• in some cases, they may be personally liable for their acts of discrimination and that legal action may be taken against them directly by the victim of any discrimination; and

• it may be a criminal offence intentionally to harass another employee.

Sources of further knowledge to support understanding and personal development

https://www.gov.uk/guidance/equality-act-2010-guidance

Related Documents and Procedures

Squaricle Group Grievance Procedure

Squaricle Group Recruitment Policy

Squaricle Group Redundancy Policy

Squaricle Group Harassment & Bullying Policy

Squaricle Group Sexual Harassment Prevention Policy

Squaricle Group Sexual Harassment Prevention Risk Assessment and Action Plan

Squaricle Group Whistleblowing Policy

Squaricle Group Data Protection Policy

Governance

The Squaricle Group Board have overall responsibility for the implementation of this policy.